

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MAMADU BALDE

Plaintiff,

-against-

THE CITY OF NEW YORK, AND THE NEW
YORK POLICE DEPARTMENT, OFFICERS
JOHN AND JANE DOE 1-50, SAID NAMES
BEING FICTITIOUS AND PRESENTLY
UNKNOWN, OFFICERS WALTER
OSTERMEIR, BRYAN LEOTE, OFFICERS
LIOTI, BURKHARDT, AND HARRE.

Defendants.

X

Index No.: 30-1485/11
Plaintiff designates Bronx County
as the place of trial.

The basis of venue is location of
incident and Plaintiff's residence

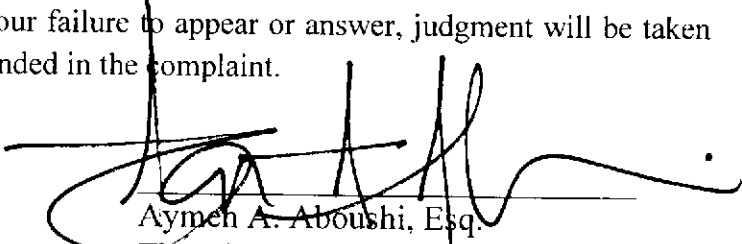
SUMMONS

Plaintiff resides in Bronx County

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the State of New York, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
August 19, 2011


Aymen A. Aboushi, Esq.
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Defendants' Address

City of New York: 100 Church Street, New York, NY 10007
Police Officer Defendants: c/o One Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MAMADU BALDE	X	Index No.:
Plaintiff,	:	Plaintiff designates Bronx County
	:	as the place of trial.
-against-	:	
	:	The basis of venue is location of
	:	incident and Plaintiff's residence
THE CITY OF NEW YORK, AND THE NEW	:	<u>Verified Complaint and Jury Demand</u>
YORK POLICE DEPARTMENT, OFFICERS	:	
JOHN AND JANE DOE 1-50, SAID NAMES	:	
BEING FICTITIOUS AND PRESENTLY	:	Plaintiff resides in Bronx County
UNKNOWN, OFFICERS WALTER	:	
OSTERMEIR, BRYAN LEOTE, OFFICERS	:	
LIOTI, BURKHARDT, AND HARRE.	:	
Defendants.	:	
	X	

Mamadou Balde, ("Plaintiff") by his attorneys, The Aboushi Law Firm,
respectfully, upon information and belief, alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff Mamadou Balde, was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant City of New York, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 3rd of May, 2011, and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon Defendant City of New York, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant City of New York, of the nature, time, place, and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been

neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.

5. All conditions and requirements precedent to the commencement of this action have been complied with.
6. The oral examination of the Plaintiff have been conducted in compliance with Section 50-H of the general Municipal law.
7. This actions falls within one or more exceptions set forth in the CPLR.
8. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss.
9. Police Officers JOHN AND JANE DOE 1-50 refer to police officers and other governmental officials who participated in the relevant facts but whose identities are unknown.
10. Upon information and belief, at all times mentioned, Defendants Police Officers JOHN AND JANE DOE 1-50, WALTER OSTERMEIR, BRYAN LEOTE, OFFICER LIOTI, OFFICER BURKHARDT, AND OFFICER HARREN (collectively referred to as "Officers") were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants, and employees of the Defendant City of New York.
11. On or About April 22, 2011, at approximately 2:00 am, in the vicinity of E. 167th Street and Jerome Avenuc, County of Bronx, City and State of New York, the Defendants jointly and severally in their capacity of police officers, wrongfully touched, grabbed, shot Plaintiff several times, handcuffed and seized Plaintiff, in an excessive manner about his person, causing him physical pain and mental suffering necessitating him to seek medical treatment. At no time did the Defendants have legal cause to grab, handcuff, seize, shoot, or touch the Plaintiff, and nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

12. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.

13. On or about April 22, 2011, at approximately 2:00 am, in the vicinity of E. 167 and Jerome Avenue, County of Bronx, City and State of New York, the Defendants, Jointly and severally, did place Plaintiff in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms outstretched limbs and other objects which they used to physically seize, strike and restrain Plaintiff. All of the above actions placed Plaintiff in imminent fear of physical contact. At no time did Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

14. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.
15. On or about April 22, 2011, at approximately 2:00 am, in the vicinity of E. 167 and Jerome Avenue, County of Bronx, City and State of New York, the Defendants, Jointly and severally, without any warrant, order, or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty, and then took him into custody. Plaintiff was detained for over 4 days as Defendants charged him with several false crimes. Defendants intentionally confined Plaintiff without his consent and the confinement was not otherwise privileged by law, and at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

16. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.
17. On or about April 22, 2011 to April 28, 2011, NYPD Spokesperson Paul Brown, issued several false and misleading statements on behalf of the NYPD to defame and slander Plaintiff, including but not limited to, that Claimant was associated with gang activity and that Claimant was uncooperative with NYPD in a prior case.
18. Said statements were false, not privileged under the law, and made with the intent to defame and slander Plaintiff causing a loss of dignity and reputation.

AS AND FOR A FIFTH CAUSE OF ACTION

19. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.
20. Defendant police Officers were at all times relevant, duly appointed, and acting officers of the City of New York Police Department.
21. At all relevant times, said police officers were acting under color of law. To wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff is and at all relevant times herein, a citizen of the United States and resident of Bronx County in the State and City of New York, and brings this cause of action pursuant to 42 United States Code Section 1983 and 42 United States Code Section 1988 as well as State Civil Rights Laws.
23. Defendant City of New York is a municipality duly incorporated under the laws of the State of New York.
24. On or about April 22, 2011, at approximately 2:00 am, in the vicinity of E. 167 and Jerome Avenue, County of Bronx, City and State of New York, the Defendants, armed police officers, while effectuating the seizure of the Plaintiff did search, seize, assault and commit a battery and grab the person of Plaintiff without a court authorized arrest warrant, or search warrant, or probable cause to believe that Plaintiff committed a crime. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. Defendants unlawfully refused to present Plaintiff to a judicial officer for arraignment for approximately 5 days after falsely arresting Plaintiff. Plaintiff was forced to recuperate in the hospital as a result to the several gunshot wound he sustained from Defendant officers while Plaintiff's hands and arms were chained to the hospital bed.
25. The above described conduct of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
 - A. Freedom from assault to his person;
 - B. Freedom from excessive force;
 - C. Freedom from battery to his person;

- D. Freedom from illegal search and seizure;
 - E. Freedom from false arrest;
 - F. The right to be arraigned within a reasonable period after arrest;
 - G. Freedom to seek life-saving medical treatment expeditiously;
 - H. Freedom from racial discrimination; and
 - I. Equal protection under the law.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used guaranteed under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that Plaintiff has suffered, and continues to suffer, severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

28. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.
29. Defendant city of New York has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure, excessive force, especially when its officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be on probable cause.
30. The City of New York was negligent by failing to implement a policy with its police department and instruct police officers who, absent the consent of Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of the City of New York are not to arrest individuals such as Plaintiff here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant or suspect is not resisting arrest.

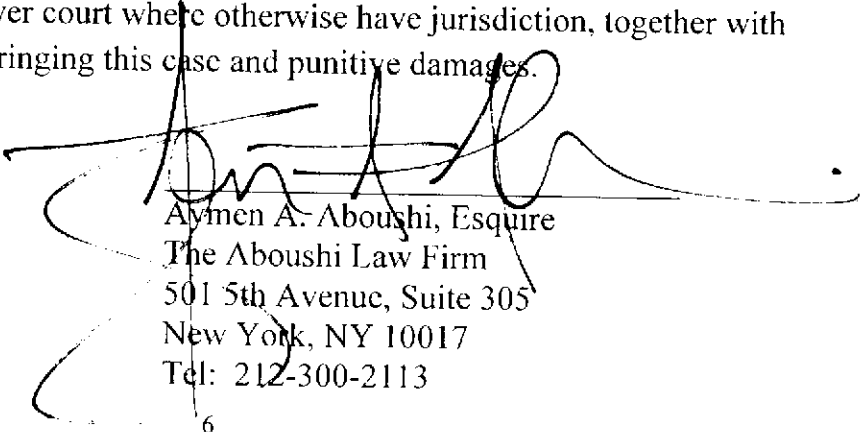
31. The City of New York is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
- A. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 - B. Force cannot be used against an individual who does not physically resist arrest.
32. The foregoing acts, omissions and systematic failures are customs and policies of the City of New York which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff and commit an assault/battery to his person.

AS AND FOR A SEVENTH CAUSE OF ACTION

33. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.
34. Defendant City of New York was negligent in that prior to and at the time of the acts complained herein, due to the prior history of the Police Officer Defendants, knew or should have known the bad disposition of said Defendant officers and defendants had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the City of New York and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorney's fees and costs of bringing this case and punitive damages.

Dated: August 19, 2011

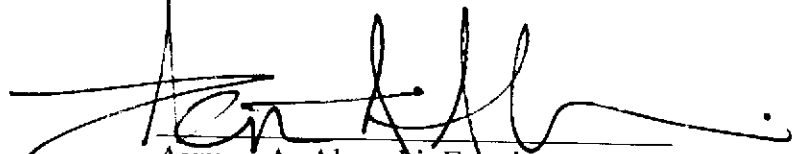

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Tel: 212-300-2113

Verification

I, Aymen A. Aboushi, an attorney admitted to practice in the Courts of New York State, state that I am a member of the firm The Aboushi Law Firm, PLLC, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the County where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: August 19, 2011



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Attorneys for Plaintiff

SAWSAN Y. ZAKY
Notary Public, State of New York
No. 02ZA6215500
Qualified in Westchester County
Commission Expires Dec. 28, 2013

8/19/11

